

2015 WL 3963414 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Hasan HOLMES, Plaintiff,

v.

THE CITY OF NEW YORK, Police Officer Glendale Pluas, Shield No. 5881, Lieutenant **Archie Van Putten**, Sergeant Franny Nunez, and Police Officers John Does #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department, Defendants.

No. 0023270-2015.
June 15, 2015.

Summons

Jacobs & Hazan, LLP., [Stuart E. Jacobs](#), Esq., 11 Park Place, 10th Floor, New York, New York 10007, (212) 577-2690, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York June 15, 2015

VERIFIED COMPLAINT

Plaintiff, HASAN HOLMES, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, [42 U.S.C. Section 1983](#), and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and secured by the common law of the state of New York, the New York State Constitution, and the laws of the State of New York. On September 6, 2013, at approximately 10:30 p.m., plaintiff, Hasan Holmes, while lawfully in the vicinity of 169th Street and Boston Road, Bronx, New York, was subject to an unlawful seizure, search, detention, false arrest, and false imprisonment, by the defendant New York City police officers. Thereafter, the defendants committed the tort and constitutional violation of denial of plaintiff's right to a fair trial pursuant to the Fifth Amendment of the United States Constitution and maliciously prosecuted plaintiff by initiating a criminal prosecution against plaintiff without probable cause, and knowingly using false allegations against plaintiff to support the charges. All criminal charges related to the September 6, 2013 arrest of plaintiff terminated in his favor when all charges against him were dismissed on March 17, 2014. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully seized, searched, detained,

falsely arrested, falsely imprisoned, maliciously prosecuted, and subjected plaintiff to denial of the right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the common law of the state of New York.

PARTIES

2. Plaintiff Hasan Holmes is a resident of the State of New York.
3. POLICE OFFICER GLENDALE PLUAS, Shield No. 5881, is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER GLENDALE PLUAS, Shield No. 5881, is and was at all relevant times herein assigned to the 42nd precinct.
5. POLICE OFFICER GLENDALE PLUAS, Shield No. 5881, is being sued in his individual and official capacity.
6. LIEUTENANT **ARCHIE VAN PUTTEN** is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.
7. LIEUTENANT **ARCHIE VAN PUTTEN** is and was at all relevant times herein assigned to the 42nd precinct.
8. LIEUTENANT **ARCHIE VAN PUTTEN** is being sued in his individual and official capacity.
9. SERGEANT FRANNY NUNEZ is and was at all time relevant herein an officer, employee, and agent of the New York City Police Department.
10. SERGEANT FRANNY NUNEZ is and was at all relevant times herein assigned to the 42nd precinct.
11. SERGEANT FRANNY NUNEZ is being sued in his individual and official capacity.
12. Defendant New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
13. Defendant Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.
16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and

the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of some or all of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with [General Municipal Law Section 50](#).

18. The CITY OF NEW YORK held a hearing pursuant to [50-h of the general municipal law](#) on or about July 23, 2014.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

20. This action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On September 6, 2013, plaintiff was lawfully in the vicinity of Boston Road and 169th Street, Bronx, New York, at approximately 10:30 p.m., where he saw a close acquaintance, Margaret Rivera, standing at a pay phone on a public sidewalk.

23. Plaintiff observed that Ms. Rivera was not feeling well, and attempted to convince her to come home to a safe place where she could sober up.

24. Ms. Rivera became angry that plaintiff tried to convince her to come home and began smashing plaintiff with the payphone on his right hand, left forearm, and chin, causing abrasions and swelling.

25. Shortly thereafter, a NYPD vehicle drove by plaintiff and Ms. Rivera and plaintiff waved his arms in order to flag down the NYPD vehicle to help with the situation.

26. The NYPD vehicle stopped in front of plaintiff and Ms. Rivera and the NYPD officer exited the vehicle and approached the two individuals.

27. Upon and information and belief, the individually named defendant police officers observed the physical injuries to plaintiff's person and acknowledged to plaintiff that they could see the abrasions and swelling on his face, arm, and hand. Moreover, the officers acknowledged to plaintiff that his physical injuries were wholly consistent with his version of events about how Ms. Rivera assaulted him and caused his injuries.

28. Plaintiff explained to the police officers that his friend had a drug addiction, was high and incoherent, and that he was trying to convince her to sober up and go to a safe place.

29. Further, plaintiff showed the police officer a prior police report that documented that his friend previously had an incident wherein she was high, incoherent, suicidal, and diagnosed with bipolar disorder.

30. The NYPD officer then approached Ms. Rivera who was so high she could barely talk, and in response to the NYPD officer's questioning, she falsely alleged that plaintiff was harassing her.

31. It was clear to any reasonable person that she was not physically injured, and had not recently been assaulted. Notably, Ms. Rivera was not bleeding, and did not have any visible bruises. Ms. Rivera never received any medical treatment for any physical injuries.

32. Nevertheless, the police officers proceeded to knowingly and intentionally falsely arrest plaintiff without any probable cause or factual basis to believe he committed a crime.

33. Thereafter, plaintiff was transported to the 42nd precinct by the individually named defendant police officers, where he was fingerprinted, photographed, and detained in a holding cell.

34. The police officers did not recover any illegal drugs, weapons, or contraband from plaintiff during the course of their unlawful search.

35. The defendant police officers acknowledged that plaintiff's injuries required medical treatment and had an ambulance respond to the 42nd precinct to treat plaintiff's injuries.

36. Plaintiff was then transported by ambulance to North Central Bronx Hospital so that he could receive further medical treatment for the injuries inflicted on him by Ms. Rivera.

37. Plaintiff was then discharged from North Central Bronx Hospital and transported back to the 42nd precinct.

38. The defendant police officers maliciously initiated a prosecution against plaintiff without probable cause and falsely communicated to the Bronx District Attorney's Office that plaintiff had committed a crime despite knowing that plaintiff had not committed any crime and despite being in possession of evidence that exonerated plaintiff of the alleged crime.

39. Based upon the false, incomplete, and/or misleading information provided to the District Attorney's Office by the defendant police officers, a prosecution against plaintiff was initiated.

40. Thereafter, plaintiff was transported to Bronx Central Booking.

41. On September 8, 2013, after over 24 hours in police custody, plaintiff was arraigned in Bronx Criminal Court and charged with numerous crimes as a result of the defendants' false allegations against plaintiff and bail was set in the amount of \$15,000.

42. Plaintiff was unable to post bail and therefore was remanded to the custody of the NYC Department of Correction and housed at the AMKC facility at Riker's Island.

43. On or about September 12, 2013, after spending approximately 5 days at Riker's Island, plaintiff was released from Riker's Island, all felony charges against plaintiff were dismissed and plaintiff was released on his own recognizance.

44. Thereafter, plaintiff was forced to appear in Court on approximately four occasions before all charges against plaintiff terminated in his favor and were dismissed on March 17, 2014.

45. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable seizures, searches, false arrests, false imprisonments, and malicious prosecutions of plaintiff.

46. The unlawful seizure, search, false arrest, false imprisonment, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth and Fourteenth Amendment Rights

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, falsely arrested, falsely imprisoned, maliciously prosecuted, denied his due process rights and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

54. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. Defendants lacked probable cause to search plaintiff.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

62. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 61 with the same force and effect as if fully set forth herein.

63. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

64. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

65. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

66. In withholding/creating false evidence against plaintiff Hasan Holmes and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

67. As a result of the foregoing, plaintiff Hasan Holmes sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Malicious Prosecution

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, the laws of the State of New York and New York State common law.

71. Defendants commenced and continued a criminal proceeding against plaintiff.

72. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

73. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

74. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Hasan Holmes. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

82. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

JURY DEMAND

88. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Hasan Holmes demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to [42 U.S.C. § 1988](#).

Dated: New York, New York June 15, 2015

By: /s/

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